

**TENTATIVE RULING:** The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 25, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

**CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**Shirley Jo Kilgore v. Piner’s Nursing Home**

**26CV001142**

**PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY, SET ONE; REQUEST FOR SANCTIONS**

**TENTATIVE RULING:** The requests for orders compelling further discovery responses are MOOT. The request for an award of monetary sanctions is DENIED.

Plaintiff Shirley Jo Kilgore, by and through her Guardian ad Litem Daniel P. McQueeney, moves, pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2030.300, 2031.310, 2030.290, subdivision (b), 2033.280 subdivisions (b) and (c), and 2033.290 for an order compelling Defendant Piner’s Nursing Home, Inc. (Piner’s) to serve verified, code-compliant further responses, without objection, to: (1) Special Interrogatories, Set One, Nos. 1 through 49; (2) Requests for Production of Documents, Set One, Nos. 1 through 60; and (3) Requests for Admission, Set One, Nos. 1 through 5 and 11 through 46. Ms. Kilgore also moves to compel Piner’s: (4) to produce documents responsive to the subject Requests for Production; (5) to serve *verified* responses to Form Interrogatories, Set One; (6) to serve verified, code-compliant responses without objection to Requests for Admission, Set One, Nos. 6 through 10, or, in the alternative, an order deeming admitted the truth of the matters specified in those requests. Finally, Ms. Kilgore moves for an award of monetary sanctions against Piner’s and its counsel of record, jointly and severally, in the amount of \$10,860.00.

Piner’s presents evidence that, on August 10, 2026, the day the instant Motion was filed, Piner’s produced further responses to each of the subject sets of discovery, and produced a verification for each on August 12, 2026. (See Declaration of Sean Worsey at ¶¶ 23-26.) These responses contain substantive answers to most, if not all, of the subject discovery requests. (See *id.* at Exh. A.) Piner’s also presents evidence that, on August 11, 2026, it produced over 3,000 documents in response to the Requests for Production.

Ms. Kilgore observes that the Opposition was served one day later than the deadline set by the Court. (See Reply in Support of Plaintiff’s Motion at 2:1-6.) Ms. Kilgore does not, however, assert that she has suffered any prejudice as a result of that delay. Moreover, Ms. Kilgore addresses the opposition on its merits through the Reply. The Court, therefore, declines Ms. Kilgore’s invitation to disregard the Opposition.

While the mere service of responses following a motion to compel does not necessarily render the motion moot (see, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406 [held: trial court did not abuse its discretion in ruling on a motion to compel responses *pursuant to* 2030.290 where responding party served responses *after* filing of motion]), the Court finds that Piner's service of *substantive* answers and a significant volume of documents renders each of Ms. Kilgore's requests, save that for monetary sanctions, MOOT.

The Court acknowledges Ms. Kilgore's assertions that certain of the answers set forth in the supplemental responses are deficient for various reasons, and that no documents responsive to certain Requests for Production have been produced. (See Reply at 2:8-5:5.) The adequacy of these answers is not formally before the Court on the instant Motion; Considering these issues would deprive Piner's of due process in the form of an opportunity to respond. The parties are *urged* to meet and confer in good faith to resolve these remaining disputes.

The Court further finds that imposition of monetary sanctions, under the circumstances, would be unjust. Ms. Kilgore served a substantial number of discovery requests together. While Piner's did not produce responses by the deadlines set by the Civil Discovery Act, the Court finds that it did proceed with diligence to collect the information and documents, and prepare and serve responses. Moreover, the Court finds that Piner's counsel was communicative with Ms. Kilgore's counsel continuously through the process.

Trial preference necessarily increases the time pressures associated with litigation. In the context of these pressures, the Court acknowledges Ms. Kilgore's need to bring the instant motion as a hedge against the possibility that Piner's was not diligently working to produce responses and documents as counsel was representing. However, in light of the fact that Piner's was diligently working towards that production, the Court finds that an award of monetary sanctions would be unjust.

**PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.**

**In the Matter of Daniel M. Lennox Special Needs Trust**

**18PR000271**

PETITION FOR APPROVAL OF NINTH ACCOUNT AND REPORT OF TRUSTEE AND  
APPROVAL OF TRUSTEE'S FEES

**TENTATIVE RULING:** The petition is GRANTED, including fees as prayed.

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